IGNIS CARE LIMITED
30 Pipit Walk Hemel Hempstead HP3 0FR

Review Sheet

Last Reviewed 30 Sep 2025 | Last Amended 9 Nov 2023 | This policy will be reviewed as needs require or at the following interval: 2 years

Business Impact:	MEDIUM — Changes are important, but urgent implementation is not required, incorporate into your existing workflow.
Reason for this Review:	Scheduled review
Changes Made:	No
Summary:	This policy outlines the process that should be followed should agency workers be required, as well as outlining the rights of agency workers. It has been reviewed and updated with no amendments. The references have also been checked.
Relevant Legislation:	• Equality Act 2010 • The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 • The Health and Social Care Act 2008 (Regulated Activities) (Amendment) Regulations 2012 • Management of Health and Safety at Work Regulations 1999 • The Workplace (Health, Safety and Welfare) Regulations 1992 • Data Protection Act 2018 • UK GDPR • Regulation 7 Conduct of Employment Agencies and Employment Businesses Regulations 2003 • Regulation 13A Conduct of Employment Agencies and Employment Businesses Regulations 2003 • Agency workers regulations 2010
Underpinning Knowledge:	• Author: Skills for Care, (2025), Statutory and Mandatory Training Guide for Adult Social Care Employers [Online] Available from: https://www.skillsforcare.org.uk/Developing-your-workforce/Guide-to-developing-your-staff/Statutory-and-mandatory-training.aspx [Accessed: 30/09/2025] • Author: GOV.UK, (2019), Agency Workers Regulations 2010: Guidance for recruiters [Online] Available from: https://www.gov.uk/government/publications/agency-workers-regulations-2010-guidance-for-recruiters [Accessed: 30/09/2025] • Author: Government, (2021), Your Rights as an Agency Worker [Online] Available from: https://www.gov.uk/agency-workers-your-rights/basic-information-you-should-receive [Accessed: 30/09/2025] • Author: Government, (2003), The Conduct of Employment Agencies and Employment Businesses Regulations 2003 [Online]

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Uncontrolled Document
March 2026

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	Available from: https://www.legislation.gov.uk/uksi/2003/3319/ [Accessed: 30/09/2025]
Suggested Action:	• Encourage sharing the policy through the use of the QCS App
Equality Impact Assessment:	QCS have undertaken an equality analysis during the review of this policy. This statement is a written record that demonstrates that we have shown due regard to the need to eliminate unlawful discrimination, advance equality of opportunity and foster good relations with respect to the characteristics protected by equality law.

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1. Purpose

1.1 To ensure that IGNIS CARE LIMITED meets regulation, legislation and best practice standards in relation to the use of agency workers.

1.2 To detail the rights of agency workers when working within IGNIS CARE LIMITED.

1.3

Key Question	Quality Statements
SAFE	QSS3: Safeguarding
SAFE	QSS6: Safe and effective staffing
WELL-LED	QSW6: Partnerships and communities

1.4 Relevant Legislation

- Equality Act 2010
- The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
- The Health and Social Care Act 2008 (Regulated Activities) (Amendment) Regulations 2012
- Management of Health and Safety at Work Regulations 1999
- The Workplace (Health, Safety and Welfare) Regulations 1992
- Data Protection Act 2018
- UK GDPR
- Regulation 7 Conduct of Employment Agencies and Employment Businesses Regulations 2003
- Regulation 13A Conduct of Employment Agencies and Employment Businesses Regulations 2003
- Agency workers regulations 2010

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2. Scope

2.1 Roles Affected:

- Registered Manager
- Administrator
- Manager

2.2 People Affected:

- Service Users

2.3 Stakeholders Affected:

- Commissioners
- Local Authority
- NHS

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3. Objectives

3.1 All agency staff working at IGNIS CARE LIMITED have the skills and competence to deliver safe care and support. The correct procedures have been followed to ensure that they have had the checks to demonstrate that they can work with Service Users.

3.2 There are sufficient numbers of staff working at IGNIS CARE LIMITED at all times to ensure the safe provision of support and care for Service Users.

3.3 There is a clear understanding that the use of agency workers is in exceptional circumstances only, such as:

- When there is a vacant post with budget availability and the work cannot be covered by existing staff
- When service delivery is at risk
- When there is an unexpected increase in the volume of work (e.g. due to unplanned absences)

3.4 There is a team working culture of equality and inclusivity. Any signs of discrimination towards other workers (whether agency or permanent staff) will not be tolerated.

4. Policy

4.1 IGNIS CARE LIMITED will not use agency staff unless there are exceptional circumstances. Any requests must be authorised by Mrs Miriam Chengeto Cummings or another designated senior member of staff.

4.2 An approved list of the agencies that IGNIS CARE LIMITED will access when sourcing agency staff will be available.

4.3 IGNIS CARE LIMITED will ensure that it complies fully with the Agency Workers Regulations 2010, in that agency staff are entitled to the same basic employment and working conditions as if they had been recruited directly by IGNIS CARE LIMITED.

In addition, all agency work-seekers will be provided with a Key Information Document by the employment business (i.e. recruitment agency) before agreeing the terms on which the agency work-seeker would be engaged. Only after the Key Information Document has been provided and the agency work-seeker has agreed the terms of the engagement will the agency work-seeker become agency staff. An example Key Information Document has been developed by the Government and a link to this is available in the Further Reading section.

4.4 IGNIS CARE LIMITED will ensure that it complies fully with Regulation 7 of the Conduct of Employment Agencies and Employment Businesses Regulations 2003, in that it will not recruit any agency workers during industrial action by its employees to cover roles of those employees who take part in industrial action.

4.5 Contingency planning, effective recruitment processes and efficient rota management will be acknowledged as the key to eliminating the need for agency staff and Mrs Miriam Chengeto Cummings will ensure that key staff have both an ability and a working knowledge in these areas.

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Document Approved: 1st March 2025
Approved by: Miriam Chengeto

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5. Procedure

5.1 Use of Agency Staff

Staff should refer to the local systems and procedures in place for how to manage the covering of staff shifts at short notice. Where all options have been exhausted, staff must contact Mrs Miriam Chengeto Cummings for permission to use agency staff.

The following principles apply for all agency workers:

- Mrs Miriam Chengeto Cummings or a designated other will ensure that the agency worker who has been booked has the relevant qualifications, skills and competence for the role intended
- Mrs Miriam Chengeto Cummings or the administrative staff must ensure that the agency worker has the appropriate DBS in place
- Mrs Miriam Chengeto Cummings or a designated other will use the Agency Staff Checklist to induct new agency staff
- Mrs Miriam Chengeto Cummings will make every effort to use the same agency worker where repeated, exceptional circumstances require the use of agency staff

5.2 Records

Mrs Miriam Chengeto Cummings should be able to demonstrate that the above principles have been achieved.

Evidence of the agency worker's competence and ability will be held securely at IGNIS CARE LIMITED and this should include:

- A DBS to work in the role for which they are required
- An induction record
- Any performance reviews requested directly by the Agency

Records will be held in accordance with the recommended retention schedules.

5.3 Day One Rights

The agency worker must have an induction to the service and this will be delivered by a suitably skilled, experienced and competent member of staff. A template form is available within the 'Forms' section of this policy.

The agency worker will be made aware that they are entitled to use the shared facilities and services at IGNIS CARE LIMITED, such as the staff room, changing facilities and on-site parking.

Agency workers will be provided with information about any relevant job vacancies within IGNIS CARE LIMITED via the local staff communication systems used, (e.g. staff notice board or newsletter).

5.4 Inducting Agency Staff

The induction for agency staff should be robust and give the person a clear understanding of the service, risks and key information. The agency induction should include (where relevant):

- Signing in sheet
- Welcome by the manager and a tour of the building – kitchen, sluices (if applicable), offices, door entry codes, security staff facilities, toilets, staffroom, breaks, smoking
- Emergency contact numbers – GP, manager, relatives

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- Fire procedures – alarms, fire panel, grab bag, Personal Emergency Evacuation Plans (PEEPs)
- Safeguarding contact numbers
- The procedure for the personal call bell system (If applicable)
- Care Plans, diary notes, diary, handover systems
- Dealing with the storage and handling of clean or dirty laundry
- Incident Reporting – falls protocol and incident forms
- Service User personal/private space check procedures
- Key safety risks for each Service User
- Location of Care Plans and moving and handling plans for Service Users
- Administering medication – medicine storage keys, medicines room (if applicable), MARs, infection control whilst handling medicines, PPE, location of medicines spillage kit
- Location of First Aid Boxes
- Service Users on the DOLs list
- Location of policies and procedures
- Night time expectations – waking shift, security of the building
- Where to access the business continuity plan

Please note: This list is not exhaustive and each service may have amendments to according to their specific environment.

5.5 Week Twelve Rights

After 12 weeks in the same job with IGNIS CARE LIMITED, agency workers are entitled to the same basic terms and conditions as if they had been recruited by IGNIS CARE LIMITED directly, including:

- Basic pay, including holiday pay, overtime and bonuses linked to performance
- Holidays
- Night work
- Rest periods/breaks
- Duration of working time (e.g. not having to work more than 48 hours a week if comparable workers do not have to)

The above rules do not mean that an agency worker becomes a permanent employee of IGNIS CARE LIMITED after 12 weeks.

5.6 Pregnant Agency Workers

After completing the twelve-week qualifying period, pregnant agency workers will be allowed paid time off for ante-natal appointments during an assignment.

Pregnant agency workers may qualify for Statutory Maternity Pay but they will not qualify for Statutory Maternity Leave.

5.7 Quality Assurance and Performance

Mrs Miriam Chengeto Cummings will ensure that they support the Agency by completing any feedback or performance surveys sent to them following the use of any agency workers.

Staff must report any concerns regarding the competence or ability of the agency worker to a senior member of staff immediately.

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The senior member of staff will work collaboratively with the providing agency when managing performance concerns.

Inducting staff will ensure that the agency worker is advised to report any concerns they may have immediately to a senior manager on duty. All concerns will be managed by referring to the suite of policies and procedures at IGNIS CARE LIMITED.

5.8 Learning and Development

IGNIS CARE LIMITED will ensure that agency profiles are obtained for all agency staff, which details their training and whether it meets the requirements of the service.

Where agency staff are utilised in a longer term capacity or there is specialised training required, Mrs Miriam Chengeto Cummings will work with the agency to ensure that the agency staff member has the relevant training.

All agency staff must have the relevant core and mandatory training required for adult social care:

- Assisting and moving people
- Basic life support and first aid
- Communication
- Dignity
- Equality and diversity
- Fire Safety
- Food Hygiene
- Health and safety awareness
- Infection prevention and control
- Medication management (if administering medication)
- Mental capacity and deprivation of liberty safeguards
- Moving and handling objects
- Nutrition and hydration
- Oral health
- Positive behaviour support
- Recording and reporting
- Safeguarding adults
- Safeguarding children
- Specific conditions according to the needs of specific Service Users (for example autism, epilepsy, parkinson's)

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6. Definitions

6.1 Agency Staff/Worker

- Under the Agency Workers Regulations 2010, an agency worker is defined as a person who is supplied by a temporary work agency to “work temporarily for, and

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under the supervision and direction of, a hirer" and who has a contract of employment or any other contract to perform work and services personally

7. Key Facts - Professionals

Professionals providing this service should be aware of the following:

- IGNIS CARE LIMITED does not encourage the use of agency workers. However, it does recognise the need to ensure sufficient staffing levels at all times to deliver a safe and effective service for Service Users
- IGNIS CARE LIMITED has a pre-agreed list of preferred agency suppliers
- Permission must be sought by Mrs Miriam Chengeto Cummings (or a designated other) before requesting agency staff
- Agency staff will be made to feel welcome and included as part of the team at IGNIS CARE LIMITED for the duration of their placement
- Agency workers are required to have evidence of their DBS before working and must receive an induction from IGNIS CARE LIMITED at the start of their shift
- Agency staff will not be hired to cover employees who take part in industrial action

8. Key Facts - People Affected by The Service

People affected by this service should be aware of the following:

- You can expect to be supported and cared for by competent and skilled staff at all times
- In exceptional circumstances, you may be supported by an agency member of staff. Robust systems are in place within IGNIS CARE LIMITED to ensure that they have the right skills and are safe to support you
- You can discuss any aspect of the use of agency staff with Mrs Miriam Chengeto Cummings and your feedback is encouraged

Further Reading

Royal College of Nursing - Agency Workers:

https://www.rcn.org.uk/get-help/rcn-advice/agency-workers

GOV.UK - Providing a 'Key Information Document' for Agency Workers: Guidance for employment businesses:

https://www.gov.uk/government/publications/providing-a-key-information-document-for-agency-workers-guidance-for-employment-businesses

ACAS - Agency Workers:

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https://www.acas.org.uk/agency-workers/understanding-your-employment-rights-as-an-agency-worker

Personnel Today - Agency Worker Ban during Strikes to be Reinstated (from 10 August 2023):

https://www.personneltoday.com/hr/high-court-agency-worker-ban-during-strikes-judgment/

Outstanding Practice

To be "outstanding" in this policy area you could provide evidence that:

- There is a culture of equality, diversity and inclusivity for all staff working at IGNIS CARE LIMITED that extends to temporary, contract or agency staff
- Where agency staff are used, they feedback positively on their experiences
- Service User feedback identifies assurance that they feel safe and supported by the staff at IGNIS CARE LIMITED
- The wide understanding of the policy is enabled by proactive use of the QCS App
- IGNIS CARE LIMITED does not use agency staff and has innovative ways of ensuring that there are sufficient numbers of staff with the appropriate skill mix available at all times

Forms

The following forms are included as part of this policy:

Title of form	When would the form be used?	Created by
Agency Staff Checklist - PC21	To evidence that necessary checks and an introduction to IGNIS CARE LIMITED have been achieved.	QCS

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Agency Staff Checklist - PC21

Name:		**Shift:**		**Date:**	
Action		**Detail**		**Signed**	
Evidence of current DBS check					
Tour of premises		Emergency exits External security (nights) Sluice Linen Clinical room Records WC facilities Staff room			
Fire alarm location and operation					
Fire evacuation procedure					
Location of Service User list					
Emergency contact					
Accident documentation location					
Accident procedure					
Medication management system					
Senior person on duty		Name:			
General on-call GP (other than Service User's own)		Name:			
Procedure on death					
Enquiry book location					
Care Plan documentation/system usage (where applicable)					
Routines within IGNIS CARE LIMITED					
Raising concerns					
Infection control					

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This form should be amended to cover all of the points raised in the procedure section 5.4 Inducting Agency Staff to meet the locations requirements.

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